



Appeal Decision

Site visit made on 7 July 2026

by Mr D Szymanski BSc (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date:

Appeal Ref: 6006289

Land north Of Lyndale, Twitty Fee, Danbury, Chelmsford CM3 4PG

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mr R Bowers against the decision of Chelmsford City Council.
 - The application Ref is 25/01593/OUT.
 - The development proposed is described as Reinstatement of previous dwelling and erection of 1no. self-building.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The application is made in outline with all matters reserved for future approval. Insofar as they provide indications of potential access, appearance, layout, scale and landscaping, I have considered the submitted plans as indicative only of how the appeal site could be developed. In its appeal statement the Council confirmed that due to receipt of a payment seeking to secure mitigation measures for designated habitats sites, it no longer objects to the appeal proposal on these grounds. I have had regard to this in setting out the main issues below.
3. The Council did not refuse permission for reasons in respect of whether the proposal could secure a self- or custom build dwelling, and its implications for Biodiversity Net Gain (BNG). However, the parties' evidence raises issues in this respect, so I have sought substantive comments upon these matters, which I have had regard to in setting out the main issues below and in determining this appeal. No party would be prejudiced by this approach.
4. Since the appeal was lodged the Government has published the revised National Planning Policy Framework (2026) (the Framework) and the 2024 and 2025 Housing Delivery Test results, which I have given the Council and the appellant the opportunity to comment upon, and taken into consideration in the determination of this appeal.

Main Issues

5. The main issues are:
 - whether or not the proposal would be compliant with policies for the location of development to access services and facilities;
 - the effect of the proposal upon the character and appearance of the area;

- the effect of the proposal upon the significance of Twitty Fee as a non-designated heritage asset (NDHA); and,
- whether or not the proposal is compliant with policies and guidance for BNG.

Reasons

Location

6. Policy S7 of the Chelmsford Local Plan (2020) (the CLP) explains the spatial strategy applies spatial principles to focus new housing to the most sustainable locations by making the best use of previously developed land in Chelmsford Urban Area; sustainable urban extensions around Chelmsford and South Woodham Ferrers; and around Key Service Settlements (KSCs) outside the Green Belt in accordance with the settlement hierarchy. The spatial principles seek to, amongst other things, locate development at well-connected and sustainable locations.
7. The appeal site is in the countryside a significant distance northeast of the KSC of Danbury, which contains a moderate range of services and facilities. This includes some pubs, tea/coffee shops, small supermarkets, recreational facilities, nurseries, primary school, library, a village hall, post office, and commercial and employment uses. Although, to access a number of other services and facilities, such as certain professional services, larger retail offerings and leisure and recreation facilities, and further education provision, trips to other settlements would be required.
8. Danbury's services and facilities are spread across it. Some of the closest are approximately 850m from the site, such as a bus stop, pub and small supermarket. Although many are further from it. To walk or cycle to services and facilities would require walking or cycling along Twitty Fee and/or Hopping Jacks Lane and Runsell Lane. Though vehicles may not be travelling at or near the national speed limit along all parts, the routes include significant sections that are largely unlit, some single-track with no footways and limited refuge from traffic. Once within Danbury the speed limit reduces and there are some lighting and footways.
9. However, taking into consideration various attributes of routes, they would not be particularly attractive and convenient, even to those that would be physically able to make the journeys, particularly outside daylight hours, or in inclement weather. To access what appears to be a fairly regular bus service to other settlements, for similar reasons, the routes along Twitty Fee and/or Hopping Jacks Lane and Runsell Lane would not be regarded as particularly attractive or convenient.
10. I take into account that opportunities to maximise sustainable transport solutions will vary between urban and rural areas. However, based upon the distances and nature of routes, it is likely the proposal would result in a significant proportion of car journeys with a significant number of additional private vehicular journeys and miles per year, and so would not be in a sustainable location.
11. Therefore, for the reasons set out above the proposal would not be compliant with policies for the location of development to access services and facilities, in conflict with Policy S7 of the CLP, the relevant provisions of which I have set out above.

Character and appearance

12. In combination, CLP Policies S11 and DM8 state permission will be granted for new buildings and structures in the rural area that do not adversely impact upon the

identified intrinsic character and beauty of the countryside, and subject to it falling within certain development categories. The character and appearance of the area includes rural country lanes lined by trees and hedgerows, some forested areas, fields, small numbers of dwellings, and despite part of a rural industrial site on the opposite side of the lane, it has discernibly rural character and appearance.

13. The appeal site was once occupied by a residential building. Following an enforcement notice the dwelling was largely demolished over around 40 years ago. While there are a building slab and some small piles of waste, the garden land has succeeded to informal vegetation. Notwithstanding the low-level building remains, it has a largely naturalised informal verdant appearance, which on balance makes an overall positive contribution to the character and appearance of the area.
14. While the proposal is in outline with all matters reserved to be considered under future reserved matters and other conditional submissions, it would result in a new detached dwelling, more formalised access, hardstandings, parked vehicles, associated comings and goings, the creation of garden areas and associated residential paraphernalia. It is inherent in the proposal that there would be a significantly greater mass and scale of built development to what currently exists, with a marked formalisation and domestication of the site. This would be significantly harmful to the intrinsic character, appearance and beauty of the appeal site and the area.
15. That there might be no increase in the historic footprint and there other buildings in the wider area, does not mean an absence of harm. It has not been demonstrated schemes secured by planning conditions could fully and adequately mitigate the harmful effects. Even if much of what is quite a thin front hedgerow could be retained while complying with the Highway Authority's suggested conditions, and allowing for further matured landscaping, a development would be visible from part of Twitty Fee around the site access and from a neighbouring property to the south.
16. There is a raised building slab visible, which while low level and surrounded by informal vegetation, is not covered, and I am not fully convinced the remains of the building can be said to have blended into the landscape. Upon this basis it would fall within the definition of previously developed land (PDL). Though were I to take a view the proposal was of a type supported by and not in conflict with sections A) – C), given my findings above it would not comply with Policy DM8 as a whole.
17. For the reasons set out above, the proposal would be harmful to the character and appearance of the area, in conflict with Policies S11 and DM8 of the CLP, the relevant provisions of which I have set out above.

NHDA

18. Twitty Fee is a protected lane and a NDHA, where DM14 states that proposals will be permitted where they retain the significance of the NDHA. Proposals resulting in harm to significance should demonstrate the level of harm or loss is justified following a balanced judgement of the significance of the asset, and harm is minimised through retention of features of significance and/or good design and/or mitigation measures. Policy DNP16 of the Danbury Neighbourhood Plan (2024) states that proposals will only be supported where demonstrated they would not detrimentally affect their character and setting.

19. The objective of Framework policies is to conserve and enhance the historic environment. Heritage assets should be conserved in a manner appropriate to their significance, so they can be enjoyed for their contribution to the quality of life of existing and future generations. Policy HE7 2) states where a proposal would harm the significance of a NDHA, it should be weighed against the benefits and a balanced judgement made, having regard to the scale of any harm or loss and the significance of the NDHA.
20. From what I saw, the significance of the lane derives from its historic rural origins, its narrow width, lining with banks, trees, mixed hedgerows, informal vegetation, and its associated biodiversity value. Its setting includes the land either side of it along its length. There has been some erosion along its corridor from the industrial site opposite and occasional dwellings. However, the land adjacent to the industrial site includes banks and boundary vegetation. The limited amount of development along it, fields and trees, do contribute positively to its setting and significance.
21. In its present form, the field gate, vegetation, verdant, informal and largely open appearance of the appeal site makes some minor positive contribution to the setting and significance of the NDHA. To provide a safe and suitable access for the dwelling, the Highway Authority seeks a visibility splay that has no obstructions above ground level within a 2-metre parallel band along the nearside carriageway edge across the entire site frontage indicated on the plan.
22. The appellant has provided little of substance to assess the significance of the NDHA, to demonstrate the extent of vegetation requiring removal, or assess the effect of this upon significance, or a justify mitigation, in conflict with development plan and Framework objectives. However, it would appear to me the splay would require works to and maintenance of a significant amount of vegetation.
23. Even were relatively little vegetation required to be physically removed, there would be on-going maintenance, and from the very limited evidence before me, it would formalise a significant section adjacent to the highway corridor, eroding its verdant informal nature, which would be inherently harmful to the NDHA's significance. Planting would need to be sufficiently set back and likely take a very significant time to establish and would not appear to be capable of fully mitigating the harm.
24. Therefore, for the reasons set out above, I conclude the appeal scheme would be harmful to the significance of Twitty Fee as a NDHA and would be conflict with Policy DM14 of the CLP, the relevant provisions of which I have set out above.

BNG

25. If the proposal is secured as a Custom- and/or Self- Build (CSB) dwelling it would be exempt from statutory BNG. Though the appellant also suggests it may also meet the de-minimis exemption, a consent would apply to the whole site which is greater than the current de-minimis exemption. The proposal could also not be considered under future exemptions. If not secured as a CSB dwelling, then it must meet all the requirements of relevant BNG legislation, policies and guidance.
26. In providing guidance on how BNG should operate the Planning Practice Guidance (PPG) explains the minimum national information requirements include detail of the pre-development site value at the appropriate date and the completed metric calculation tool. This allows consideration of the existing habitat baselines so there

is a common understanding about the pre-development value, and if the biodiversity gain condition is capable of being discharged successfully.

27. While I note the appellant's ecological evidence, including professional evidence in the Ecological Survey and Assessment, it does not provide the fully detailed information to sufficiently demonstrate the pre-development value, and completed metric calculation tool. Therefore, at present, it does not meet the minimum information requirements, so it is necessary for the appeal proposal to be secured as a CSB dwelling in order to avoid conflicting with BNG requirements.
28. I have significant concerns the imposition of conditions possibly including one that includes the appellant and his family as the occupiers of the dwelling for a time limited period, would be unlikely to pass the tests in Policy DM6 of the Framework due to reasonableness and the practicalities of enforcement.
29. To ensure a CSB dwelling remains in the possession of the appellant, any restriction needs to be legally applied to them. Were it sold and the appellant not to be the occupier before a given occupation period, not only would the appeal scheme no longer have permission to exist with a potential remedy of demolition, the BNG requirements for the 'pre-development' site value could no longer be met. Therefore, the BNG reason for conditions being required would be unenforceable and any proper remedy unlikely to be either reasonable or possible to achieve.
30. In consequence, a planning obligation is necessary to secure the proposal as a CSB dwelling. While the appellant has offered one, an obligation is not before me, so a CSB dwelling would not be secured. The PPG advises that in exceptional circumstances a condition to require an obligation might be appropriate where there is clear evidence the delivery of a development would otherwise be at risk, such as for particularly complex developments. However, this has not been demonstrated to be the case.
31. Therefore, the appeal scheme would not be compliant with policies and guidance for BNG. This conflicts with Framework Policy N2 1) a) which expects decisions to provide net gains for biodiversity, as well as conflicting the minimum information requirements in the PPG, the relevant provisions of which I have set out above.

Other Matters

32. The Councils' fourth reason for refusal refers to the effect upon designated habitats sites from recreational disturbance and not securing a contribution in accordance with the Essex Recreational disturbance Avoidance and Mitigation Strategy (the Essex RAMS). However, I am informed the appellant has made a contribution in accordance with the Essex RAMS. Were I to assume full mitigation would be in place and legally secured, the evidence is that the contribution is necessary to mitigate adverse impacts, and does not indicate it would result in an overall net benefit. Therefore, as I am dismissing this appeal for other substantive reasons, it is not necessary to consider this matter in detail.

Planning Balance

33. The appeal scheme would result in the provision of a further dwelling to supply which might be built out relatively quickly. I am informed the Council can demonstrate an over-supply of CSB plots but can only demonstrate a 3.88-year deliverable housing land supply (HLS). As it does not appear to comprise an

isolated site, Framework Policy HO11 does not appear relevant, but Policy S5 1) d) and h) state in the cases of redevelopment of PDL, or where a 5 year HLS cannot be demonstrated, proposals should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.

34. While noting the HLS shortfall, a single dwelling would still only be a small benefit to supply. It is not demonstrated that downsizing to the appeal site is the only option available to the appellant, and while sympathetic to the difficulties the past dwelling demolition caused the appellant and his family, I see no reason in the present day this could attract anything other than limited weight at best.
35. The proposal would result in a small economic benefit during construction and once complete a small on-going spend in the local economy. It is also possible the scheme could secure new landscaping which would appear of an overall level that would be some limited benefit. There is nothing to substantively demonstrate the renewable energy benefits could be anything other than a minor net benefit at best.
36. Were I to agree the proposal is, or subject to the imposition of suitably worded conditions could be, compliant with policies and standards in respect of matters such as resource and energy efficient design, materials, the living conditions of future and neighbouring occupiers, archaeology, parking and access standards, protecting and mitigating any adverse effects upon protected species, and designated habitats sites, these would be neutral matters in the balance.
37. However, the proposal conflicts with development plan policies for the location of new housing because it would not be well located for sustainable access to services and facilities. It would be significantly harmful to the character and appearance of the area, and result in harm to the significance of a NDHA, for which neither the magnitude nor suitably justified mitigation is demonstrated. It would also not secure a CSB dwelling and so BNG requirements have not been demonstrated to be met. The policy conflicts and harms are such that these matters substantially outweigh the benefits of the proposal when assessed against the national decision-making policies in the Framework. Therefore, the appeal should not succeed.

Conclusion

38. The proposal conflicts with the development plan read as a whole and the Framework taken as a whole. There are no material considerations, including the policies of the Framework, that indicate the decision should be made other than in accordance with the development plan. Therefore, for the reasons given, the appeal should not succeed.

Dan Szymanski

INSPECTOR